Newanforbi v. CHP (26CV191136): Certification-or-Remand Writ Strategy

Matter	Newanforbi v. California Highway Patrol, et al.
Court	Alameda Sup. Ct., Dept. 25, Hon. Jenna M. Whitman
Hearing	January 8, 2027, 9:00 a.m. (writ of mandate, CCP § 1085)
Date	October 24, 2026

Research memo for the Jan 8, 2027 9:00 a.m. writ hearing, Dept. 25 (Hon. Jenna M. Whitman). Prepared Oct 24, 2026 for a self-represented petitioner. This is research and drafting support, not legal advice. Every citation is marked Binding, Persuasive, or UNVERIFIED.

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Bottom line

> **Recommendation.** Lead with vacatur and a controlled remand, and keep direct certification as the higher tier. Certification is reachable only if the court resolves the probable-cause dispute in petitioner's favor on a developed record. That likely means live testimony under CCP 1090 or a credibility ruling on the video. On today's paper record, a request for an order to sign Supplement B is very likely to be denied as an attempt to control discretion. A well-built remand request is winnable.

1. Strongest point: the sworn CHP 202 (AGO 31) says petitioner "chose not to perform" the walk-and-turn "and related it was difficult." On the CHP-produced dashcam, petitioner says "I mean I think we can do that," and Officer Melano says "uneven ground. I wouldn't do that one" (transcript 01:10:14–01:10:30). The report then lists "poor performance on the FST's" as an arrest basis (AGO 32). The court's demurrer order also relied on petitioner having "resisted one of the tests."

2. Biggest barrier: direct certification requires a judicial finding that the arresting officers committed false imprisonment or unlawful restraint, meaning an arrest without lawful authority. The officers swore to odor, slurred speech, red and watery eyes, HGN clues, and an admission of driving. The record also has an open Mike's Hard Lemonade can, a car stopped on a freeway shoulder, and a 0.073% blood result. The court already said the pleaded facts "tend to suggest probable cause."
3. No published California appellate decision applies PC 679.10 in mandate. CourtListener full-text searches for "679.10" and "section 679.10" in California courts returned zero opinions on Oct 24, 2026. The case is one of first impression, which favors remand over a compelled result.
4. Do not re-plead the (i)(2) reason-giving or (h) helpfulness-presumption claims. Both were sustained without leave. Use the letter's lack of reasons only as evidence that no element analysis occurred.
5. Cut or shrink the door-opening search theory, the parole and search chronology, PAS-refusal "Jackson" arguments, Mercer, and any perjury rhetoric. Section 10 explains each.

Record: established facts vs. petitioner's assertions

Point	Status	Source
Car stationary on EB I-580 shoulder W/O Isabel; petitioner asleep in driver seat ~00:55, Nov 1, 2024	**Admitted**	Answer ¶¶34–35; CHP 202 (AGO 31)
Cup contained urine, not alcohol	**Admitted**	Answer ¶36; transcript 00:58:51–00:59:04
Petitioner identified Livermore, read signs, spelled name	**Admitted**	Answer ¶37
Neither officer said aloud that he smelled alcohol or that speech was slurred	**Admitted**	Answer ¶¶37, 44–45
Petitioner said he drove from Oakland toward Stockton	**Admitted (harmful)**	Answer ¶46; CHP 202 pre-FST: Oakland → Stockton; transcript 01:00:34–39, 01:03:47–57
Empty Mike's Hard Lemonade can in car; petitioner denied drinking	**Admitted (harmful)**	Answer ¶47; transcript 01:00:09
Odor of alcohol on breath and person; red, watery eyes; slurred speech; HGN clues; Romberg estimate 43 s	**CHP sworn; disputed**	CHP 202 (AGO 30–32); warrant affidavit (AGO 48–49); DS-367
Walk-and-turn: "chose not to perform … related it was difficult"	**CHP sworn; contradicted by video**	CHP 202 (AGO 31) vs transcript 01:10:14–30
One-leg stand: "chose not to perform … related it was difficult"	**Largely consistent with video**	Transcript 01:09:20 ("You don't have to"), 01:10:12 ("I don't know if I can balance")
PAS refused; arrest at 01:12 (cuffs ~01:11:16–33)	**Undisputed**	CHP 202 (AGO 30, 32); transcript
Blood 0.073 ± 0.004 g% at 02:38 under warrant (Judge Sekany, 02:34)	**Undisputed (harmful)**	Lab report (AGO 33–34); warrant (AGO 48)
No charges; PC 849/851.6 detention certificate Nov 5, 2024	**Admitted**	Answer ¶42

Point	Status	Source
Officers lied; petitioner was not impaired; petitioner was not driving	**Petitioner's assertion only**	Decl. ¶¶1–12; Petition
CHP internal review of MVARS video (May 9, 2026) and officer interviews	**Exists; withheld**	Privilege log (AGO 55–60, 64–65)

Production note: CHP's Oct 23 video index says two of the four files show "no signal" due to a hardware issue, with the camera facing the back seat. Before the brief relies on any video, confirm that the 2.47 GB file 7659@20241101005536-0.mp4 actually has the roadside audio and video behind the transcript.

1. Remedial theory

Ask for one remedy at two levels. Both rest on the same legal error: CHP denied certification without lawfully applying PC 679.10(c), (d), and (g) to the facts of the arrest, and it relied on a materially inaccurate account of those facts.

1. Level 1, direct certification (narrow). If, after the evidence is received, the court finds that (a) petitioner was arrested without probable cause or other lawful authority, so the arrest was qualifying criminal activity under (c)(18), (c)(19), or (d), and (b) petitioner has been or is likely to be helpful, then (g)(1) says the official "shall certify." The only lawful outcome is then certification, and mandate may compel it. Authority: CCP 1085(a); Cal. Correctional Supervisors Org. v. Dept. of Corrections (2002) 96 Cal.App.4th 824 ("Where only one choice can be a reasonable exercise of discretion…").
2. Level 2, vacatur and controlled remand (primary realistic ask). Set aside the April 20, 2026 denial as arbitrary, lacking evidentiary support, and contrary to law. Then order a new decision within a fixed time, under specified legal standards, on a specified record, with element-by-element written findings, by an official other than Capt. Serrato. The court retains jurisdiction and requires a return.
3. Bridge. If the court will not decide probable cause on the papers, ask under CCP 1090 for a limited evidentiary hearing on defined factual questions, such as whether petitioner declined the walk-and-turn and what the officers observed before 01:11:16. The court can then pick Level 1 or Level 2 on that record.

2. Direct-certification route

Required showings, all by petitioner on the mandate record:

1. Ministerial duty once the predicates are met: (g)(1) uses "shall certify." (k)(1) means no charges or conviction of the officers are needed. (k)(2) means a closed or time-barred case is no bar. The AG's Information Bulletin 2024-DLE-05 (pp. 4–5) is persuasive on these points.
2. Qualifying criminal activity. Petitioner must show that the facts known to the officers at 01:11 did not supply probable cause under VC 40300.5 and PC 836, so that the restraint was an "unlawful violation of the personal liberty of another" (PC 236) or a PC 146(a) arrest "without regular process or other lawful authority."

3. Direct victim: the restrained person is the directly and proximately harmed victim. See (o)(2) and 8 CFR 214.14(a)(14). This is not contested in substance.
4. Helpfulness to the "detection or investigation" of the qualifying crime. See (g)(1) and 8 CFR 214.14(a)(5). Petitioner reported the conduct through a POST complaint (forwarded Mar 23, 2026, PUBLIC-26-000371), a CHP complaint (investigation 390-26-002), and this suit. CHP denies any investigating entity requested information (Answer ¶57). Under (h), helpfulness is presumed absent refusal. The court sustained the stand-alone (h) claim only because the denial did not rest on helpfulness, so on direct certification helpfulness is live and favorable.

> **Candid barriers.** (1) Under VC 40300.5(c)–(e), a warrantless DUI arrest without in-presence driving is allowed if there was reasonable cause plus risk of non-apprehension, self-injury, or evidence destruction. Dissipating alcohol is routinely accepted under (e). So the fight is only over reasonable cause. (2) Reasonable cause is judged by the totality: admitted driving from Oakland, an open alcohol container, sleeping at a freeway shoulder, sworn odor, eyes, HGN, and the PAS refusal. Each item can be attacked, but a court can find probable cause without the walk-and-turn entry. (3) The demurrer order already saw the pleaded facts as tending toward probable cause. (4) Mandate cannot be used to substitute the court's judgment for the official's on a debatable question. (5) The certifying official signs under penalty of perjury that the person is a victim, so courts hesitate to compel that statement. (6) The issue is one of first impression with no appellate guidance. (7) The 0.073% result cannot justify the arrest after the fact (probable cause is judged when the arrest is made). But it undercuts the claim that petitioner showed no impairment, and the court will notice it.

3. Vacatur and remand route

Grounds that do not require the court to decide probable cause itself:

1. No element analysis. The letter only recites conclusions ("does not meet the standard … no substantially similar qualifying criminal activity"). It does not identify which element of PC 236 or 146 is missing, or which facts support lawful authority. Present this as proof that the official did not consider relevant factors, not as an (i)(2) claim.
2. Reliance on a materially inaccurate record. The sworn 202's walk-and-turn entry, and its "poor performance on the FST's" basis, are contradicted by CHP's own video. CHP has not shown that the certifier reviewed the video; the MVARS review is dated May 9, 2026, after the denial.
3. Wrong legal standard (subject to confirmation through the RFP 8 file). Possible errors: treating a facially lawful DUI arrest, the absence of charges, the blood result, the parole status, or federal INA eligibility as dispositive. (k)(1), (k)(3)(A), and (k)(3)(D) bar several of these. The letter's own reference to INA §101(a)(15)(U)(iii) shows it weighed federal eligibility, which is USCIS's job (AG Bulletin p. 5).
4. Directives to request: (a) vacate the Apr 20, 2026 denial; (b) a new decision within 30 days of service (cf. (j)(1)) by a certifying official other than Capt. Serrato; (c) review of the full native dashcam, the CHP 202, the DS-367, the warrant affidavit, the 415 logs, and petitioner's submission; (d) apply PC

236/146/836 and VC 40300.5 as of the moment of arrest (01:11–01:12), excluding later-acquired facts; (e) a written finding on each element of (c)(18)/(c)(19) and on (d) similarity; (f) a finding on whether the walk-and-turn entry is accurate; (g) a statement that (k)(1)–(3) factors were not relied on; (h) if victimhood is found, certify helpfulness under (g)(1) and (h); (i) file a return within 45 days, with the court retaining jurisdiction.

4. Statutory findings the court must make

Finding	Text (verified)	Needed for
CHP is a certifying entity; Serrato is a certifying official	PC 679.10(a); Answer ¶¶13–14	Both
Qualifying criminal activity occurred	(c)(18) unlawful criminal restraint; (c)(19) false imprisonment; (d) "nature and elements … substantially similar"	Certification (definitive); remand (standard only)
Petitioner is a victim	(o)(2); 8 CFR 214.14(a)(14) "directly and proximately harmed"	Certification
Helpfulness	(g)(1) "has been helpful, is being helpful, or is likely to be helpful"; (h) rebuttable presumption	Certification
No prohibited ground relied on	(k)(1)–(3)	Both
Denial was arbitrary, lacked evidentiary support, or was contrary to law	CCP 1085 abuse-of-discretion review	Both
Only one lawful outcome	CCSO, 96 Cal.App.4th 824	Certification

5. Element-by-element false-imprisonment analysis

Element	Petitioner's evidence	CHP's evidence	Assessment
Restraint of liberty against will (PC 236; PC 146(a) "arrests … or detains")	Handcuffed 01:11:33; transported; jailed Nov 1–5 (Answer ¶¶39, 41)	Concedes arrest	**Met**
By a public officer under color of authority (PC 146)	Uniformed CHP officers	Admitted	**Met**
Without lawful authority, i.e., no probable cause (PC 836(a)(1); VC 40300.5)	Cup was urine; no voiced odor or slurring; oriented (read signs, named city); stationary car; walk-and-turn waived by officer; one-leg stand made optional; arrest immediately after a lawful PAS refusal, with officer saying arrest was "up to my discretion" (01:11:03)	Sworn odor (vehicle, breath, person), red and watery eyes, slurred speech, HGN 6 clues plus lack of convergence, Romberg 43 s, open can, admission of driving from Oakland, asleep on freeway	**Genuinely disputed; credibility**
Detention phase (pre-arrest) unlawful	Weak: a welfare check on a car stopped on a freeway shoulder is lawful	Community caretaking or reasonable suspicion	**Concede; don't argue**

Element	Petitioner's evidence	CHP's evidence	Assessment
Substantially similar offense ((d))	PC 146(a) arrest without lawful authority shares the nature and elements of false imprisonment	May argue PC 146 is a misdemeanor misconduct offense, not a crime against the person	**Arguable; no authority**

Intent: PC 236 false imprisonment is a general-intent crime (People v. Fernandez (1994) 26 Cal.App.4th 710, binding). Even so, an arrest supported by probable cause is not "unlawful." PC 847(b) also gives officers civil immunity when they had reasonable cause to believe the arrest lawful. CHP will invoke that "reasonable belief" standard by analogy. Answer: 847(b) governs civil liability and is not the 679.10 definition, but expect the court to borrow the probable-cause yardstick anyway.

6. Material-factual-error analysis

CHP statement	Record	Materiality
"Walk and Turn: Newanforbi chose not to perform this test and related it was difficult." (202, AGO 31)	01:10:23 "I mean I think we can do that"; 01:10:25–27 Melano: "uneven ground. I wouldn't do that one"; 01:10:30 "Alright then."	**High: listed FST basis; drives court's "resisted" view**
"Newanforbi's poor performance on the FST's" as arrest basis (AGO 32)	Only HGN and Romberg were performed; walk-and-turn was waived by officers	**High**
"explained and demonstrated a series of [FSTs] … which he did not perform as explained and demonstrated" (AGO 32; affidavit AGO 49)	Two tests not performed, one by officer's choice	**Medium**
Strong odor of alcohol; slurred speech	Never voiced at scene (Answer ¶¶37, 44–45); initial "I think it's booze" (00:56:09) was the urine cup	**Medium: credibility, not proof of falsity**
"he related yes, from a party in Oakland" (drove to location)	Answer ¶46 admits Oakland → Stockton; transcript 01:03:47 "I was in the driver's seat"	**Low: don't contest driving**
Answer ¶38: arrest "shortly after … refused to complete a chemical alcohol test"	Arrest 01:11–01:12 followed PAS refusal; chemical-test advisement began ~01:15:54	**Medium: CHP's own pleading ties arrest to the refusal**

7. Mandate analysis

1. Vehicle: CCP 1085 traditional mandate. No hearing or evidence was required before the denial, so CCP 1094.5 does not apply. Review is for arbitrary or capricious action, entire lack of evidentiary support, or failure to follow the law. Statutory interpretation is reviewed de novo. Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432 (binding) is a mandate case about a county's duties under Elections Code §304. Cite it only for general traditional-mandate principles, and confirm the pinpoint before filing.
2. Evidence beyond the agency file: in traditional mandate challenging ministerial or informal administrative actions, courts may consider evidence outside the administrative record. Western

States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559 (binding) supports this; the holding was checked, but the 575–576 pinpoint is UNVERIFIED. Its bar on extra-record evidence applies to quasi-legislative decisions. A 679.10 denial is informal and adjudicatory, so the video comes in.

3. Fact-trial option: CCP 1090 (verified) lets the court order a trial of factual questions raised by the return. CCP 1094 (verified) allows decision on the papers if the return raises only questions of law.
4. Compelling a result: mandate cannot control discretion, but it can compel a particular action when only one choice is a reasonable exercise of discretion. CCSO, 96 Cal.App.4th 824 (binding; Third District) states this (verified snippet). Note that CCSO affirmed denial of the writ because the petitioner did not prove an abuse of discretion. Cite it for the standard only.
5. Reasons: Saleeby v. State Bar (1985) 39 Cal.3d 547 (binding) concerned Client Security Fund procedures and the need for reasons so that judicial review is possible. It is useful by analogy for a remand with findings, but not as a free-standing (i)(2) claim.

8. Evidence and authentication plan

1. Lodge the native MP4s exactly as CHP produced them on Oct 23, 2026, with a declaration of receipt that lists file names, sizes, and SHA-256 values from CHP's production index. Authentication by the producing party's own production satisfies Evid. Code 1400–1401 (UNVERIFIED pinpoint; confirm 1410 and 1421).
2. Send CHP a proposed stipulation, or serve requests for admission, that file 7659@20241101005536-0.mp4 is a true copy of the MVARS recording and that the transcript excerpts at 00:56–01:12 are accurate. A refusal supports a costs-of-proof request.
3. Prepare a clip index with timestamps for 00:56:09, 00:58:51–00:59:04, 01:00:34–41, 01:03:47–57, 01:09:20–01:10:30, and 01:10:33–01:11:33. Re-certify the transcript excerpts against the native file.
4. Use the CHP 202, DS-367, warrant affidavit, and 415 logs as CHP-produced records (AGO bates). They are party admissions for the narrow purpose of showing what CHP said.
5. Fix the declaration: execution date and place are blank. Without them it is not a valid CCP 2015.5 declaration (UNVERIFIED pinpoint). Complete and serve the proof of service.
6. If the hearing is limited to papers, ask the court to view the walk-and-turn clip at the hearing.

9. Expected CHP opposition and responses

CHP argument	Response	Strength
Probable cause existed on the totality; the walk-and-turn entry is immaterial	The entry was among the listed bases; the remand route does not need the court to find no probable cause, only that the certifier never weighed the accurate record	**CHP strong on certification; weaker on remand**
Certification is discretionary; mandate cannot compel it	(g)(1) "shall"; but concede discretion over the predicate facts, and ask for remand	**Even**

CHP argument	Response	Strength
A lawful DUI arrest is not a qualifying crime	Agree that a lawful arrest is not; dispute lawfulness; the certifier must decide that on the element analysis	**Even**
The 0.073% BAC shows impairment	Probable cause is fixed at the moment of arrest; later facts cannot justify it (cf. People v. Sanders (2003) 31 Cal.4th 318, search context, persuasive by analogy)	**Petitioner moderate**
Petitioner admitted driving	Concede. The issue is impairment evidence, not driving	**CHP**
The transcript is unauthenticated	CHP produced the native video with hashes; offer stipulation	**Petitioner**
Unclean hands or bad faith	No authority applies unclean hands to a statutory duty; the record shows none	**Petitioner**
Remand is futile because the result would be the same	A new decision on an accurate record under correct standards is not futile; futility is CHP's burden	**Petitioner moderate**
Re-arguing (i)(2) and (h) violates the demurrer ruling	Don't; use reasons only as evidence of no analysis	**Avoidable**

10. Arguments to remove or narrow

Argument in current memo	Action	Why
Door opening at 00:56:40–43 as unlawful search	**Remove**	A search, not a restraint; not a 679.10 qualifying crime; distracts
Parole dispatch at 01:11:42; search chronology	**Remove**	Puts criminal history before the court; (k)(3)(A) already bars its use
PAS refusal / People v. Jackson	**Narrow**	Jackson (First Dist., No. A128782) held admitting PAS-refusal evidence at trial was error but harmless. Use only to show refusal was lawful, not proof of no probable cause
Mercer v. DMV ("driving" requires volitional movement)	**Remove**	Petitioner admitted driving; Mercer was about observed driving for the admin-per-se statute
851.6 certificate as proof of no probable cause	**Narrow**	It shows release without charges, not absence of probable cause
(i)(2) reason-giving and (h) presumption as independent claims	**Remove**	Sustained without leave; law of the case at trial level
Perjury and obstruction theories	**Remove**	Unproven; invites credibility backlash. Say "inaccurate" or "contradicted by video"
Walk-and-turn misattribution	**Keep; lead**	Documented, CHP-produced, material
Cup was urine; no voiced odor or slurring; orientation	**Keep**	Admitted in Answer

11. Authority audit

Authority	Use in motion	Verified holding	Status
Common Cause (1989) 49 Cal.3d 432	Mandate standards, 442–443	Mandate; county duties under Elec. Code §304; pinpoint not confirmed	**Binding; pinpoint UNVERIFIED**
Saleeby (1985) 39 Cal.3d 547	Reasons required, 560–562	Client Security Fund; reasons needed so judicial review possible	**Binding; recast as analogy**
CCSO (2002) 96 Cal.App.4th 824	Only one lawful outcome, 827	States the rule; affirmed denial of writ	**Binding; keep for rule**
People v. Sanders (2003) 31 Cal.4th 318	After-acquired facts	Search unjustified by parole condition unknown to officers	**Binding; analogy only**
Mercer (1991) 53 Cal.3d 753	No driving	Observed volitional movement for the DMV statute	**Remove**
People v. Jackson (2010) 189 Cal.App.4th 1461	PAS refusal	Error to admit PAS refusal at trial (23612); harmless	**Binding; narrow**
Western States (1995) 9 Cal.4th 559	Extra-record evidence, 575–576	Extra-record evidence allowed in mandate on ministerial or informal actions	**Binding; keep (holding checked; pinpoint UNVERIFIED)**
People v. Thompson (2006) 38 Cal.4th 811 (court)	Demurrer order: 40300.5	Cites 40300.5 for warrantless DUI arrest	**Binding; CHP will use**
Espinoza v. Shiomoto (2017) 10 Cal.App.5th 85	Demurrer order	DMV; lawful-arrest finding upheld	**Binding; CHP will use**
People v. Wolterman (1992) 11 Cal.App.4th Supp. 15	Demurrer order	Not located on CourtListener	**UNVERIFIED**
People v. Fernandez (1994) 26 Cal.App.4th 710	New: FI is general intent	Verified	**Binding; add**
People v. Celis (2004) 33 Cal.4th 667	New: detention vs arrest	Verified subject only	**Binding; optional**
Cervantez v. J.C. Penney (1979) 24 Cal.3d 579	New: warrantless arrest needs probable cause; false arrest is FI	Verified subject	**Binding; add**
Asgari (1997) 15 Cal.4th 744	New: FI by officers	Civil FI and false arrest against city and officer	**Binding; optional**
Kavanaugh (2003) 29 Cal.4th 911; Hollywood Park (2009) 178 Cal.App.4th 924	Considered	Not confirmed by search	**UNVERIFIED; don't cite**
AG Info. Bulletin 2024-DLE-05 (Apr 3, 2024)	New: AG reading of 679.10	No charges needed; time no bar; denials reasoned; agency-specific	**Persuasive; add**
8 CFR 214.14(a)	Definitions	Verified (a)(2),(3),(5),(9),(12),(14)	**Persuasive for state statute**

Authority	Use in motion	Verified holding	Status
CA appellate cases on 679.10 mandate	Searched	Zero results (CourtListener, Oct 24, 2026)	**None found**

12. Revised motion structure

1. Introduction (1 page): the denial rests on a record CHP's own video contradicts, and no element analysis was done. Ask for remand with directives, or certification if the court finds no lawful authority.
2. Statement of facts: Admitted facts first (Answer cites), then CHP's sworn account, then the video. Label petitioner's own assertions as such.
3. Standard of review: CCP 1085; Western States; CCSO.
4. Argument I: The denial misapplied 679.10(c), (d), and (g). It made no element analysis, may have rested on barred factors, and weighed federal eligibility.
5. Argument II: The denial rests on a materially inaccurate account (walk-and-turn; "poor performance").
6. Argument III: The accurate record would support a finding that probable cause was lacking at 01:11. This argument is for Level 1, and alternatively for the 1090 hearing.
7. Argument IV: Remedy. Vacatur, directives, and retained jurisdiction; certification if only one lawful outcome remains.
8. Evidence: native video declaration; clip index; stipulation request.

13. Proposed findings: certification alternative

1. CHP is a certifying entity, and Capt. G. Serrato is a certifying official (Answer ¶¶13–14).
2. On Nov 1, 2024, at about 01:11–01:12, CHP officers arrested petitioner, handcuffed him, and detained him until Nov 5, 2024.
3. Based on the recording and the evidence received, the facts known to the officers at the time of arrest did not give reasonable cause to believe petitioner had driven under the influence within VC 40300.5 and PC 836(a)(1). [Requires a contested finding.]
4. The arrest was an unlawful violation of personal liberty within PC 236 and 679.10(c)(19), or substantially similar under 679.10(d).
5. Petitioner was directly and proximately harmed (679.10(o)(2)).
6. Petitioner has not refused or failed to provide reasonably requested assistance. He reported the conduct to POST and to CHP and is presumed helpful (679.10(g)(1), (h)).
7. On these findings, certification is the only lawful outcome.

14. Proposed findings: remand alternative

1. The Apr 20, 2026 letter states conclusions and identifies no element of any qualifying crime, no facts, and no review of the dashcam recording.
2. The CHP 202 states that petitioner chose not to perform the walk-and-turn. The CHP-produced recording shows that petitioner agreed and that an officer declined the test because of uneven ground.
3. The 202 lists "poor performance on the FST's" as a basis for arrest.
4. Nothing in the record shows that the certifying official considered the recording or applied the elements of PC 236/146 and the lawful-authority standard as of the time of arrest.
5. The denial was therefore made without consideration of relevant factors and on a materially inaccurate record. It is arbitrary and lacks evidentiary support. The Court expresses no view on whether certification must issue.

15. Judgment and writ language

Alternative 1: direct certification

> **PROPOSED PEREMPTORY WRIT, ALTERNATIVE 1**
>
> IT IS ORDERED that a peremptory writ of mandate issue commanding Respondents California Highway Patrol and its certifying official to: (1) set aside the April 20, 2026 denial (File No. 390.18437.17620.26-050); (2) within 30 days of service of the writ, complete, sign, and deliver to Petitioner a Form I-918 Supplement B certifying that Petitioner was a victim of qualifying criminal activity (Penal Code § 679.10, subd. (c)(19) [and/or (c)(18), (d)]) occurring on November 1, 2024, and that Petitioner has been helpful, is being helpful, or is likely to be helpful, and including the information required by § 679.10, subd. (i)(1); and (3) file a return within 45 days of service. The Court retains jurisdiction until Respondents have complied.

Alternative 2: vacatur and controlled remand

> **PROPOSED PEREMPTORY WRIT, ALTERNATIVE 2**
>
> IT IS ORDERED that a peremptory writ of mandate issue commanding Respondents to: (1) set aside the April 20, 2026 denial; (2) within 30 days of service, issue a new written decision on Petitioner's certification request by a certifying official other than Capt. G. Serrato; (3) in making that decision, review the complete native dashcam recordings produced on October 23, 2026, the CHP 202, DS-367, warrant affidavit, CHP 415 logs, and any submission Petitioner makes within 10 days of service; (4) determine, element by element, whether the November 1, 2024 arrest was made without lawful authority under Penal Code §§ 236, 146, 836 and Vehicle Code § 40300.5, judged on facts known to the officers at the time of arrest, and whether that conduct is qualifying criminal activity under § 679.10, subds. (c)(18), (c)(19), or (d); (5) make an express finding as to the accuracy of the CHP 202 statement concerning the walk-and-turn test; (6) not rely on any ground prohibited by § 679.10, subd. (k), or on Petitioner's eligibility for federal immigration benefits; (7) if the arrest is found to be qualifying criminal activity, determine helpfulness under § 679.10, subds. (g)(1) and (h); and (8) file a return within 45 days of service attaching the new decision. The Court expresses no opinion on the outcome and retains jurisdiction.

16. Additional evidence needed

1. The RFP 8 certification-decision file: what Serrato actually reviewed before Apr 20, 2026. Move to compel if not produced.
2. Confirm which MP4 has the roadside audio. The index says two files show "no signal."
3. The CAD log shows queries at 01:06–01:07, before the arrest. Ask what was run and when, in order to test the timing of the parole information. Use this only defensively.
4. Officer testimony or declarations on odor and slurring, and on why the walk-and-turn entry reads as it does. The withheld May 2026 interviews (AGO 58–60, 64–65) may contain admissions. Consider an in-camera review request.
5. The POST and CHP complaint records, to support helpfulness.
6. A completed and dated declaration, and the proof of service.

17. Prioritized revision checklist (status as of Oct 24, 2026)

☐ Reorder relief: remand primary, certification as the top tier, 1090 hearing as the bridge

☐ Lead with the walk-and-turn contradiction and the conclusory letter

☐ Remove the door-search, parole, Mercer, and perjury arguments, and the standalone (i)(2)/(h) claims

☐ Narrow Jackson and 851.6; recast Saleeby and Sanders as analogy

☐ Add the AG Bulletin 2024-DLE-05, Fernandez, Cervantez, and the CCP 1090 citation

☐ Verify the pinpoints for Common Cause and Wolterman and the Evid. Code sections before filing

☐ Native video declaration with hashes; clip index; stipulation request

☐ Sign and date the declaration; complete the proof of service

☐ Replace the proposed writ and judgment with the two Section 15 alternatives

☐ Pursue RFP 8 and the privileged-interview issue before the hearing

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Penal Code § 679.10 — leginfo.legislature.ca.gov

Vehicle Code § 40300.5 — leginfo.legislature.ca.gov

8 CFR 214.14 — law.cornell.edu

CA AG Info. Bulletin 2024-DLE-05 — oag.ca.gov, Apr 3, 2024

Sources

1. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10
2. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=146
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